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24-CIV-04948 GILBERTO SOLORZANO REYNAGA VS. JOSE LUIS CEJA CHAVEZ, ET AL.

LINE 2

GILBERTO SOLORZANO REYNAGA
JOSE LUIS CEJA CHAVEZ

KENNETH KLEEGER
NATHAN N. WANG

DEFENDANT/CROSS-COMPLAINANT: FLY TOWING LLC'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

TENTATIVE RULING:

The Motion is DENIED as MOOT.

The Court notes that the Motion for Leave to File Cross-Complaint (the "Motion") filed on November 20, 2025, by Defendant Fly Towing LLC (hereinafter, "Defendant" unless another defendant is specified) stated that the above-entitled matter was set in Department 15. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) While the motion should have been renoticed, there has been no prejudice and the error is waived. The Court recognizes that this case was reassigned twice since the motion was filed.

Background

Per allegations, Defendant Jacinto Villanueva Roslaes and Defendant negligently made a sudden left turn in front of Plaintiff's oncoming vehicle, causing Plaintiff to brake suddenly. Defendant Jose Luis Ceja Chavez negligently hit Plaintiff's vehicle from the rear, pushing it into Defendant Roslaes' vehicle, causing serious injuries and damages to Plaintiff.

However, the Cross-Complaint was filed with an appended Proof of Service on November 20, 2025 (concurrently with the Motion), and the Clerk issued a Summons to Defendant Chavez on March 4, 2026, though there is no record of the service of the Summons. The Court noted that an unsigned version of the Cross-Complaint bearing an earlier date and no file-stamp is attached to the Declaration of Michael E. Gallagher in Support of the Motion (the "Gallagher Declaration"). (Gallagher Decl., ¶ 9, & Exh. A.)

Defendant applied *ex parte* for an Order shortening time for the hearing of the Motion, which application the Court denied. (Order, filed on December 17, 2025.)

Through its Motion, Defendant seeks an Order granting it leave to file a Cross-Complaint against Defendant Chavez and Roe Defendants.

Governing Law

The governing statutes provide that:

A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him. Nothing in this subdivision authorizes the filing of a cross-complaint against the plaintiff in an action commenced under Title 7 (commencing with Section 1230.010) of Part 3.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.

(Code Civ. Proc., § 428.10), and:

(a) A party shall file a cross-complaint **against any of the parties who filed the complaint** or cross-complaint **against him or her** before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(*Id.*, § 428.50 (emphasis added).) Though Defendant filed an Answer on February 19, 2025, without the proposed Cross-Complaint having been filed therewith (*id.*, § 428.50, subd. (a)), the proposed Cross-Complaint names only Defendant Chavez as a Cross-Defendant. Thus, it falls within subdivisions (b) of both statutes, so that leave is not required (*id.*, § 428.50, subd. (c)). (*Bean v. City of Thousand Oaks* (2025) 114 Cal. App. 5th 775, 784, review denied (Dec. 30, 2025)).

The action thus proceeds with the Cross-Complaint of record that has already been filed.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

PLAINTIFF: RICHARD FRESCHET'S MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS: RX SOLAR INC. AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560

TENTATIVE RULING:

The court will exercise its discretion to consider the new evidence provided with the Supplemental Declaration of Ira Leshin. However, the motion is continued to September 14, 2026, so that defendant may review the evidence.
